

HOUSE No. 1640

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modernize the roles and responsibilities of the victim and witness assistance board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1640

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 1640) of Michael S. Day relative to the roles and responsibilities of the Victim and Witness Assistance Board. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4326 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize the roles and responsibilities of the victim and witness assistance board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 258B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the last paragraph and inserting the following
3 paragraph:-

4 There shall be conspicuously posted in all courthouses and police stations a summary of
5 the rights afforded under this section devised and provided in digital or printed format by the
6 victim and witness assistance board, pursuant to section 4. The board shall further provide this
7 information in the top five languages spoken at home in the Commonwealth, other than English,
8 as provided by the most recent federal census data, and upon request, the board will respond, to
9 the extent possible, to any requests for additional language translations.

SECTION 2. Section 4 of said chapter 258B of the General Laws, as so appearing, is hereby amended by striking, line 30, the word “him” and inserting in place thereof the following word:- them.

SECTION 3. Said Section 4 of said chapter 258B of the General Laws, as so appearing, is hereby further amended by striking lines 33 to 67 and inserting in place thereof the following paragraphs:-

The board shall establish, adopt, and maintain bylaws relative to the operation of internal governance.

In addition to the foregoing, the board shall:

(a) fund and support services that are available to victims across the commonwealth;

(b) provide informational material, professional development and community education opportunities for Massachusetts victim services providers, victims, allied professionals, medical facilities and law enforcement agencies including sharing information relative to the victim and witness rights and services established under this chapter;

(c) advocate for policy initiatives related to access and support for victims’ rights and services including but not limited to funding;

(d) assume the management and administration of the Garden of Peace, a public memorial garden located on the plaza of 100 Cambridge street in the city of Boston to honor victims of homicide, to receive gifts or grants of money or property to assist the board in the maintenance and operation of the memorial and to establish an advisory committee which shall

30 consist of interested residents appointed by the victim witness assistance board to provide advice
31 to the board; and

32 (e) administer the SAFEPLAN advocacy program as established in Chapter 151 of
33 the Acts of 1996.

34 SECTION 4. Section 6 of said chapter 258B of the General Laws, as so appearing, is
35 hereby amended by striking, in line 2, the words:- the board.